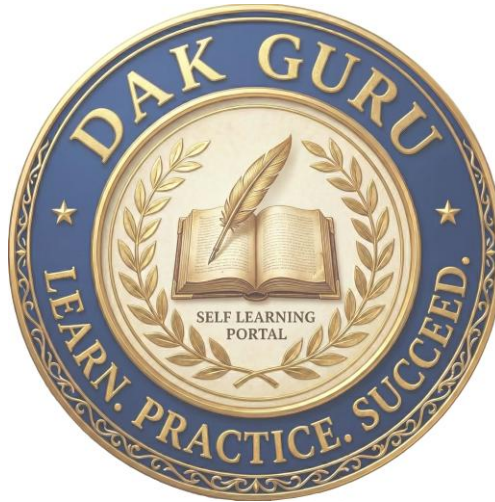


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STUDY MATERIAL

THE INFORMATION TECHNOLOGY ACT, 2000

(Act 21 of 2000)

Complete Section-by-Section Guide • As amended up to the Jan Vishwas Act, 2023

Updated & Verified Edition • June 2026

For LDCE IP & PS Group 'B' Departmental Examinations

Department of Posts

www.dakguru.com



DISCLAIMER

This booklet has been prepared by Dak Guru strictly from an examination point of view to assist aspirants of the LDCE Inspector of Posts (IP) and PS Group 'B' departmental examinations of the Department of Posts. While every effort has been made to ensure accuracy and to incorporate the most recent amendments, notifications, and circulars relating to the Information Technology Act, 2000, this document is intended solely as a study aid.

The statutory position stated herein has been cross-checked against primary sources, including the bare text of the Act as hosted on the India Code portal (indiacode.nic.in) and the Jan Vishwas (Amendment of Provisions) Act, 2023 (Act 18 of 2023), whose Information Technology Act amendments took effect on 30 November 2023. Law is, however, subject to change through subsequent amendments, rules, and judicial pronouncements.

Readers and students are strongly advised to refer to the official Gazette of India and authoritative government sources for the most reliable and current legal text. Neither Dak Guru nor DG InfoTech accepts any liability for any consequence arising from reliance on this material. In case of any conflict, the official statute shall prevail.

CURRENCY OF THIS EDITION — VERIFIED

This edition reflects the law in force as on June 2026. Every section (1–90) has been reconciled against the consolidated bare Act on India Code, and the penalty figures of the Jan Vishwas Act, 2023 (effective 30-11-2023) independently verified. The later **Jan Vishwas (Amendment of Provisions) Act, 2026 (Act 8 of 2026)** does not amend the IT Act. Note: Section 43A (data protection) remains in force now but is scheduled for repeal when the DPDP Act, 2023 (Section 44(2)) commences in Phase 3, notified for 13 May 2027.

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How to Use This Booklet

This booklet covers the Information Technology Act, 2000 section-by-section, following the Act's own 13-chapter structure. Every operative section is explained in simple, exam-ready language; omitted and repealed sections are noted so you have the complete map. Three colour-coded boxes appear throughout:

EXAM TIP

Points frequently asked or easily confused in objective-type questions.

LAW UPDATED

A provision whose penalty or text was changed by the Jan Vishwas (Amendment of Provisions) Act, 2023 (w.e.f. 30 November 2023), or by the IT (Amendment) Act, 2008. The current position is given, with the old position for contrast.

VERIFIED

A figure or position cross-checked against the bare Act (India Code consolidated text) so you can rely on it.

STRUCTURE — The Act at a glance

94 sections in 13 chapters, with 4 schedules (the Third and Fourth Schedules are now omitted). Sections 91–94 — which originally amended the IPC, Evidence Act, Bankers' Books Evidence Act and RBI Act — now stand omitted. The first 14 sections deal mainly with electronic/digital signatures and e-governance; the offence and penalty provisions sit in Chapters IX and XI.



1. Introduction and Objectives

The Information Technology Act, 2000 (Act 21 of 2000) is India's primary law on cyberspace, electronic commerce and digital governance. It gives legal recognition to transactions carried out by electronic data interchange and other means of electronic communication (e-commerce), which use electronic alternatives to paper-based communication and storage of information.

Main Objectives

- Grant legal recognition to electronic records and electronic (digital) signatures.
- Facilitate electronic filing of documents with Government agencies (e-Governance).
- Give legal sanctity to electronic commerce and online contracts.
- Prevent and punish cyber-crimes and computer-related offences.
- Make consequential amendments to other laws so that electronic evidence and records are recognised.

Consequential Amendments to Other Laws

When first enacted, the IT Act amended the Indian Penal Code, 1860, the Indian Evidence Act, 1872, the Bankers' Books Evidence Act, 1891 and the Reserve Bank of India Act, 1934, so that electronic records and signatures would be legally recognised.

LAW UPDATED — New Criminal Codes (2023)

Since 1 July 2024, the earlier references read: **Indian Penal Code, 1860** → **Bharatiya Nyaya Sanhita, 2023**; and **Indian Evidence Act, 1872** → **Bharatiya Sakshya Adhinyam, 2023**. The Bankers' Books Evidence Act, 1891 and RBI Act, 1934 references continue.

International Basis

The Act is modelled on the UNCITRAL Model Law on Electronic Commerce, adopted by the United Nations General Assembly by resolution A/RES/51/162 dated 30 January 1997, which recommended that all States give favourable consideration to the Model Law to bring uniformity to the law on electronic alternatives to paper-based methods.



Key Dates

Event	Date
Enacted (President's assent)	9 June 2000
Came into force	17 October 2000
Major overhaul — IT (Amendment) Act, 2008	w.e.f. 27 October 2009
Latest penalty amendments — Jan Vishwas Act, 2023	w.e.f. 30 November 2023

EXAM TIP

Assent on 9 June 2000 but enforced on 17 October 2000. The 2008 Amendment (in force 27-10-2009) introduced most cyber-crime sections (66A–66F, 67A–67C, 69A, 69B, 70B) and the concept of “electronic signature”.





2. Chapter I – Preliminary (Sections 1–2)

Section 1 – Short Title, Extent, Commencement and Application

- The Act extends to the whole of India.
- Save as otherwise provided, it also applies to any offence or contravention committed outside India by any person (extra-territorial operation; read with Section 75 – applies where the act involves a computer, computer system or computer network located in India).
- Section 1(4): the Act does not apply to documents/transactions in the First Schedule; the Central Government may amend that Schedule by notification, which must be laid before Parliament.

Section 2 – Definitions

The Act defines a long list of terms. The most exam-relevant are below.

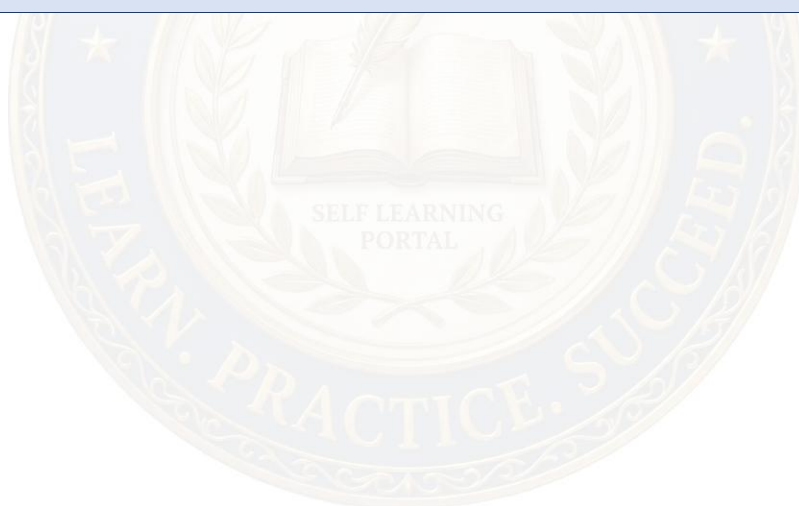
- Access – gaining entry into, instructing or communicating with the logical, arithmetical or memory function resources of a computer, computer system or network.
- Addressee – a person intended by the originator to receive the electronic record; excludes any intermediary.
- Originator – a person who sends, generates, stores or transmits any electronic message, or causes it to be sent; excludes an intermediary.
- Appropriate Government – the State Government for matters in List II / a State law under List III of the Seventh Schedule; otherwise the Central Government.
- Asymmetric crypto system – a secure key pair: a private key (to create a digital signature) and a public key (to verify it).
- Communication device – cell phones, PDAs or any device used to communicate, send or transmit text, video, audio or image.
- Computer / computer system / computer network / computer resource – the hardware, interconnected systems and the data/database/software respectively.
- Cyber café – any facility from where internet access is offered to the public in the ordinary course of business.



- Cyber security — protecting information, equipment, devices, computer resources and communication devices and stored information from unauthorised access, use, disclosure, disruption, modification or destruction.
- Digital signature vs Electronic signature — “digital signature” is the asymmetric-crypto + hash method (Section 3); “electronic signature” is the wider, technology-neutral term (Section 3A) and includes digital signature.
- Intermediary — any person who, on behalf of another, receives, stores or transmits an electronic record or provides any service with respect to it; includes telecom/network/internet service providers, web-hosts, search engines, online payment/auction/market-place sites and cyber cafés.

EXAM TIP

“Addressee” and “Originator” both exclude an intermediary. “Electronic signature” is the genus; “digital signature” is one species within it (post-2008). Clauses (na) “cyber café” and (nb) “cyber security” were inserted, and old clause (n) reorganised, by the Finance Act, 2017.





3. Chapter II — Digital Signature & Electronic Signature (Sections 3–3A)

Section 3 — Authentication of Electronic Records

- A subscriber may authenticate an electronic record by affixing his digital signature.
- Authentication is effected by an asymmetric crypto system and hash function, which envelop and transform the original record into another electronic record.
- Any person can verify the record using the subscriber's public key; the private and public keys are unique to the subscriber and form a functioning key pair.

Hash Function (Explanation to Section 3)

An algorithm mapping one sequence of bits into another, generally smaller, set called the "hash result". The same input always yields the same hash result, and it is computationally infeasible to (a) reconstruct the original record from the hash result, or (b) produce the same hash result from two different records.

Section 3A — Electronic Signature

Inserted by the IT (Amendment) Act, 2008, this makes the law technology-neutral. A subscriber may authenticate any electronic record by an electronic signature or authentication technique that (a) is considered reliable and (b) is specified in the Second Schedule.

A technique is "reliable" if the signature-creation/authentication data is linked to and under the exclusive control of the signatory, and any later alteration to the signature or the signed information is detectable. The Central Government may add to or omit techniques from the Second Schedule by notification (laid before Parliament).

EXAM TIP

Section 3 = digital signature (specific, crypto-based). Section 3A = electronic signature (general, technology-neutral). The shift from 3 to 3A is the single biggest conceptual change of the 2008 Amendment.



4. Chapter III – Electronic Governance (Sections 4–10A)

Section 4 – Legal Recognition of Electronic Records

Where any law requires information to be in writing, typewritten or printed, that requirement is satisfied if the information is rendered/made available in electronic form and is accessible for subsequent reference.

Section 5 – Legal Recognition of Electronic Signatures

Where any law requires a document to be signed, that is satisfied if it is authenticated by an electronic signature affixed in the manner prescribed by the Central Government.

Section 6 – Use of Electronic Records & Signatures in Government

Where any law provides for filing documents with, or issue of licences/permits/approvals by, or receipt/payment of money to a Government office, that requirement may be satisfied electronically in the form prescribed by the appropriate Government (the foundation of e-Governance).

Section 6A – Delivery of Services by Service Provider

Inserted in 2008. The appropriate Government may authorise any service provider (individual, agency, company, firm, etc.) to set up and run computerised facilities and to collect, retain and appropriate service charges for delivering e-services to the public (the statutory basis for Common Service Centres / e-seva).

Section 7 – Retention of Electronic Records

Where any law requires records to be retained for a period, that is satisfied by retention in electronic form if the information remains accessible, is kept in (or accurately represents) the original format, and the details of origin, destination, date and time of despatch/receipt are available.

Section 7A – Audit of Electronic Documents

Inserted in 2008. Where any law provides for the audit of documents/records, that provision also applies to documents/records processed and maintained in electronic form.



Section 8 — Publication in Electronic Gazette

Where any law requires publication in the Official Gazette, publication in the Official Gazette or the Electronic Gazette satisfies the requirement; where published in both, the date of publication is the date first published in any form.

Section 9 — No Right to Insist on Electronic Form

Sections 6, 7 and 8 do not confer any right on a person to insist that a Government Ministry/Department/authority must accept, issue, create, retain or preserve a document in electronic form, or carry out a monetary transaction electronically.

Section 10 — Power of Central Government to Make Rules on Electronic Signature

The Central Government may prescribe the type, manner and format of electronic signatures, the procedure to identify the person affixing them, and control processes to ensure integrity, security and confidentiality of electronic records or payments.

Section 10A — Validity of Contracts Formed Through Electronic Means

Inserted in 2008. Where, in contract formation, the proposal, acceptance, and their revocation are expressed in electronic form, the contract is not unenforceable merely because electronic means were used.

■ EXAM TIP — Section 10A

10A gives statutory recognition to e-contracts (click-wrap, shrink-wrap, email contracts). It is among the most heavily tested e-commerce provisions. Pair it with Sections 11–13 (attribution, acknowledgement, time/place of despatch and receipt).



5. Chapter IV – Attribution, Acknowledgement & Despatch (Sections 11–13)

Section 11 – Attribution of Electronic Records

An electronic record is attributed to the originator if it was sent (a) by the originator himself, (b) by a person authorised to act on his behalf for that record, or (c) by an information system programmed by or on his behalf to operate automatically.

Section 12 – Acknowledgement of Receipt

- Where no particular form of acknowledgement is stipulated, acknowledgement may be by any communication (automated or otherwise) or any conduct of the addressee sufficient to indicate receipt.
- Where the originator stipulated that the record is binding only on receipt of acknowledgement, and none is received, the record is deemed never to have been sent.
- Where no such stipulation was made and acknowledgement is not received within the specified/reasonable time, the originator may, after notice, treat the record as never sent.

Section 13 – Time and Place of Despatch and Receipt

- Despatch occurs when the record enters a computer resource outside the originator's control.
- Receipt – if the addressee designated a computer resource, on the record entering it (or, if sent elsewhere, when retrieved); if no resource was designated, when it enters any computer resource of the addressee.
- Place – deemed despatched at the originator's place of business and received at the addressee's place of business (principal place if more than one; usual residence if none; for a body corporate, the place of registration).

EXAM TIP – Section 13

Despatch = leaves originator's control. Receipt = enters/retrieved from addressee's resource. Place follows the parties' place of business, NOT where the server is located. Classic MCQ on e-commerce jurisdiction.



6. Chapter V — Secure Electronic Records & Signatures (Sections 14–16)

Section 14 — Secure Electronic Record

Where a security procedure has been applied to an electronic record at a specific point of time, the record is a secure electronic record from that time until the time of verification.

Section 15 — Secure Electronic Signature

An electronic signature is secure if, at the time of affixing, the signature-creation data was under the exclusive control of the signatory and of no other person, and was stored and affixed in the prescribed exclusive manner. (For a digital signature, the “signature creation data” is the subscriber’s private key.)

Section 16 — Security Procedures and Practices

The Central Government may prescribe security procedures and practices for the purposes of Sections 14 and 15, having regard to commercial circumstances, the nature of transactions and other relevant factors.



7. Chapter VI – Regulation of Certifying Authorities (Sections 17–34)

Administrative Hierarchy

- Central Government – apex; frames rules and policy.
- Controller of Certifying Authorities (CCA) – the regulator (Section 17).
- Deputy Controllers, Assistant Controllers, other officers – assist the Controller.
- Certifying Authority (CA) – licensed to issue Electronic Signature Certificates to subscribers.

Section 17 – Appointment of Controller and Officers

The Central Government may appoint a Controller of Certifying Authorities and such Deputy/Assistant Controllers, other officers and employees as it deems fit. The Controller works under the general control and directions of the Central Government; there is a seal of the Office of the Controller.

Section 18 – Functions of the Controller

The Controller's functions include: supervising CAs; certifying CAs' public keys; laying down standards; specifying CA staff qualifications, business conditions, the form/content of certificates and keys, accounts and audit terms; resolving CA-subscriber conflicts; laying down CA duties; and maintaining a public database of every CA's disclosure record.

Section 19 – Recognition of Foreign Certifying Authorities

With the previous approval of the Central Government and by notification, the Controller may recognise a foreign CA; certificates issued by such a CA are valid for the Act's purposes. Recognition may be revoked (reasons recorded) for breach of conditions.

Section 20 – [Omitted]

Originally "Controller to act as repository." Omitted by the IT (Amendment) Act, 2008 (w.e.f. 27-10-2009).



Licensing of Certifying Authorities (Sections 21–24)

Section 21 — Licence to Issue Certificates

Any person may apply to the Controller for a licence to issue electronic signature certificates, subject to qualification, expertise, manpower, financial and infrastructure requirements. A licence is valid for the prescribed period, is not transferable or heritable, and is subject to terms specified by regulations.

Section 22 — Application for Licence

The application (in the prescribed form) must be accompanied by a certification practice statement, identification procedures, the prescribed fee not exceeding ₹25,000, and other prescribed documents.

Section 23 — Renewal of Licence

- Renewal fee: not exceeding ₹5,000.
- Apply not less than 45 days before the date of expiry of the validity of the licence.

Section 24 — Grant or Rejection of Licence

The Controller may grant or reject the application after considering the documents and relevant factors; rejection only after a reasonable opportunity of presenting the case.

Section 25 — Suspension / Revocation of Licence

- The Controller may revoke a licence for false material statements, breach of terms, failure to maintain Section 30 procedures, or contravention of the Act — after a reasonable opportunity to show cause.
- Pending an enquiry, the Controller may suspend the licence; but suspension cannot exceed 10 days without a reasonable opportunity to show cause.
- A CA whose licence is suspended cannot issue any certificate during suspension.

Section 26 — Notice of Suspension or Revocation

Notice of suspension/revocation is published in the Controller's database (and any repositories), made available through a 24×7 website.

Sections 27–29 — Delegation, Investigation, Access

- Section 27 — the Controller may, in writing, delegate powers to a Deputy/Assistant Controller or any officer.



- Section 28 — power to investigate contraventions, exercising powers like those of income-tax authorities under Chapter XIII of the Income-tax Act, 1961.
- Section 29 — access to computers and data: on reasonable suspicion of a contravention, the Controller (or authorised person) may access any computer system/apparatus/data for search, and may require technical assistance.

Sections 30–32 — CA Procedures, Compliance, Display

- Section 30 — every CA must use secure hardware/software/procedures, provide reliable services, ensure secrecy/privacy of signatures, be the repository of all certificates it issues, and publish its practices and certificate status.
- Section 31 — a CA must ensure every employee/engaged person complies with the Act, rules, regulations and orders.
- Section 32 — a CA must display its licence conspicuously at its business premises.

Section 33 — Surrender of Licence

- Every CA whose licence is suspended or revoked must immediately surrender the licence to the Controller.

LAW UPDATED — Section 33 penalty

Failure to surrender is now punishable with a **penalty which may extend to ₹5,00,000**. Earlier: imprisonment up to 6 months or fine up to ₹10,000 or both. Decriminalised by the Jan Vishwas Act, 2023 (w.e.f. 30-11-2023).

Section 34 — Disclosure

Every CA must disclose its certificate, certification practice statement, any notice of revocation/suspension of its own CA certificate, and any fact materially and adversely affecting the reliability of a certificate it issued or its ability to perform services; and must notify likely-affected persons of events affecting the integrity of its system.



8. Chapter VII – Electronic Signature Certificates (Sections 35–39)

Section 35 – Issuance of Certificate

Any person may apply to a CA for an Electronic Signature Certificate in the prescribed form, accompanied by a fee not exceeding ₹25,000 (different fees may be prescribed for different classes of applicants) and a certification practice statement. The CA may grant or, for recorded reasons, reject the application – rejection only after a reasonable opportunity to show cause.

Section 36 – Representations on Issuance

On issuing a Digital Signature Certificate, the CA certifies that it has complied with the Act; that the subscriber holds and controls the private key corresponding to the listed public key; that the key pair functions; that the information in the certificate is accurate; and that it knows of no material adverse fact.

Section 37 – Suspension of Certificate

- A CA may suspend a certificate on request from the subscriber (or an authorised person), or in the public interest.
- A certificate cannot be suspended for more than 15 days unless the subscriber has been given an opportunity of being heard.

Section 38 – Revocation of Certificate

A CA may revoke a certificate on the subscriber's request, on the subscriber's death, or on dissolution/winding-up of a subscriber firm/company; and may revoke (after hearing) where a material fact was false/concealed, an issuance requirement was unmet, the CA's key/security was compromised, or the subscriber is declared insolvent/dead/dissolved.

Section 39 – Notice of Suspension or Revocation

On suspension/revocation under Section 37 or 38, the CA must publish a notice in the repository specified in the certificate.

■ EXAM TIP – Two suspension periods

Licence (CA) suspension: max 10 days without hearing (Sec 25). Certificate (subscriber) suspension: max 15 days without hearing (Sec 37). Licence renewal: 45 days before expiry (Sec 23).



9. Chapter VIII – Duties of Subscribers (Sections 40–42)

Section 40 – Generating Key Pair

Where the certificate's public key corresponds to a private key the subscriber must hold, the subscriber must generate that key pair by applying the prescribed security procedure.

Section 40A – Duties of Subscriber of Electronic Signature Certificate

Inserted in 2008. In respect of an Electronic Signature Certificate, the subscriber must perform such duties as may be prescribed (extends subscriber duties beyond digital signatures to the wider electronic-signature regime).

Section 41 – Acceptance of Certificate

A subscriber is deemed to have accepted a certificate if he publishes, or authorises publication of, the certificate to others or otherwise demonstrates approval. By accepting, the subscriber certifies to all who reasonably rely on it that he holds and controls the private key, that all representations made to the CA are true, and that all information in the certificate within his knowledge is true.

Section 42 – Control of Private Key

- Every subscriber must exercise reasonable care to retain control of the private key corresponding to the public key in his certificate, and must take all steps to prevent its disclosure.
- If the private key is compromised, the subscriber must communicate this to the CA without delay.

EXAM TIP – Section 42

Until the subscriber informs the CA of a compromise, he ordinarily bears the risk; the duty to safeguard the private key (Sec 42) is a frequent MCQ on subscriber liability.



10. Chapter IX – Penalties, Compensation & Adjudication (Sections 43–47)

LAW UPDATED – Read before the penalty entries

The Jan Vishwas (Amendment of Provisions) Act, 2023 (Act 18 of 2023), effective 30 November 2023, rationalised several IT-Act penalties — in some cases **replacing imprisonment with monetary penalties**. The figures here are the current, in-force figures.

Section 43 – Damage to Computer, Computer System, etc. (Civil)

If any person, without permission of the owner/in-charge, accesses, downloads, copies, introduces a virus/contaminant, damages, disrupts, denies access, tampers, manipulates charges, destroys/alters/diminishes the value of information, or steals/conceals/destroys source code, he is liable to pay damages by way of compensation to the affected person.

- Compensation: the original 2000 Act capped this at ₹1 crore (₹10 lakh at first, raised to ₹1 crore in 2002–04). The IT (Amendment) Act, 2008 removed the ceiling, so the adjudicating officer now awards actual loss/damage (within the ₹5-crore jurisdiction limit of Section 46).

EXAM TIP – The ₹1 crore trap

Many MCQ keys and older textbooks still state “up to ₹1 crore” for Section 43. Legally, the cap was **removed by the 2008 Amendment** (no ceiling now). If a question pre-dates 2009 or quotes the old text, the expected answer may still be ₹1 crore — read the question’s framing carefully.

EXAM TIP

Section 43 is civil (compensation); Section 66 covers the same acts when done dishonestly/fraudulently and is criminal (jail + fine). Same act, two consequences.

Section 43A – Compensation for Failure to Protect Data

Where a body corporate handling sensitive personal data in a computer resource it owns/controls is negligent in implementing reasonable security practices and thereby causes wrongful loss or gain to any person, it is liable to pay compensation. No upper ceiling.

**LAW UPDATED — Section 43A is being phased out (DPDP Act)**

Section 43A and the SPDI Rules, 2011 are scheduled to be repealed when **Section 44(2) of the Digital Personal Data Protection Act, 2023 commences (Phase 3, notified for 13 May 2027)**. As of this edition (June 2026), Section 43A REMAINS in force; data-protection has begun shifting to the DPDP Act, whose Board-related provisions came into force on 13 November 2025.

Section 44 — Penalty for Failure to Furnish Information, Return, etc.**✓ VERIFIED — Section 44 figures NOT changed by Jan Vishwas, 2023**

44(a) maximum is ₹1,50,000 (not ₹15,00,000); 44(b) is ₹5,000 per day; 44(c) is ₹10,000 per day. These are the correct statutory figures.

Clause	Failure	Maximum Penalty
44(a)	Failure to furnish any document, return or report to the Controller or CA.	₹1,50,000 per failure
44(b)	Failure to file any return / furnish information within time.	₹5,000 per day
44(c)	Failure to maintain books of account or records.	₹10,000 per day

Section 45 — Residuary Penalty

The catch-all penalty: where a person contravenes any rules, regulations, directions or orders for which no separate penalty is provided.

LAW UPDATED — Section 45

Old: compensation OR penalty not exceeding ₹25,000.

Current (w.e.f. 30-11-2023): penalty not exceeding ₹1,00,000, in addition to compensation not exceeding — (a) ₹10,00,000 by an intermediary, company or body corporate; or (b) ₹1,00,000 by any other person.

Section 46 — Power to Adjudicate

- Adjudicating Officer: an officer not below the rank of Director to the Government of India (or equivalent State officer).
- Jurisdiction: where the claim for injury or damage does not exceed ₹5 crore; above that, the competent court.



LAW UPDATED — Section 46 wording

Jan Vishwas, 2023 widened the power from contraventions “under this Chapter” to “under this Act”, and omitted “injury or” in sub-section (1A). The ₹5-crore threshold continues.

Section 47 — Factors for the Adjudicating Officer

In adjudging the quantum of compensation/penalty, the officer must have due regard to: (a) the amount of unfair advantage/gain made, wherever quantifiable; (b) the amount of loss caused to any person; and (c) the repetitive nature of the default.





11. Chapter X – The Appellate Tribunal (Sections 48–64)

Section 48 – Appellate Tribunal

The Telecom Disputes Settlement and Appellate Tribunal (TDSAT), established under Section 14 of the TRAI Act, 1997, functions as the Appellate Tribunal under the IT Act.

■ EXAM TIP – Cyber Appellate Tribunal merged

The original Cyber Appellate Tribunal (CyAT) was merged into the TDSAT by the Finance Act, 2017. Sections 49–56 (composition, qualifications, term, etc. of the old CyAT) are largely omitted as a result.

Sections 49–56 – Mostly Omitted

Following the 2017 merger, Sections 49, 50, 51, 52, 52A, 52B, 52C, 53, 54 and 56 are omitted. Section 52D (decision by majority) and Section 55 (orders constituting the Tribunal to be final; proceedings not invalidated by a vacancy/defect) survive.

Section 57 – Appeal to the Appellate Tribunal

- Any person aggrieved by an order of the Controller or an Adjudicating Officer may appeal to the Tribunal (no appeal lies from an order made with the parties' consent).
- Limitation: within 45 days from the date of receipt of the order (delay condonable for sufficient cause).
- Disposal: the Tribunal shall endeavour to dispose of the appeal finally within 6 months.

Sections 58–61 – Procedure, Representation, Limitation, Jurisdiction

- Section 58 – the Tribunal is not bound by the Code of Civil Procedure but is guided by natural justice; it has CPC powers for summoning, evidence, etc., and its proceedings are judicial.
- Section 59 – right to legal representation: the appellant may appear in person or authorise legal practitioners or officers.
- Section 60 – limitation: the Limitation Act, 1963 applies to appeals.
- Section 61 – civil courts have no jurisdiction over matters the Adjudicating Officer or Tribunal is empowered to determine; no injunction shall be granted.



Section 62 – Appeal to the High Court

- Any person aggrieved by a decision/order of the Tribunal may appeal to the High Court on any question of fact or law.
- Limitation: within 60 days from the date of communication (extendable by a further 60 days for sufficient cause).

Sections 63–64 – Compounding & Recovery

- Section 63 – compounding of contraventions: the Controller or Adjudicating Officer may compound any contravention, except where an enhanced/different punishment applies due to a previous contravention.
- Section 64 – recovery of penalty/compensation: an unpaid penalty or compensation is recovered as arrears of land revenue, and the licence/certificate may be suspended until payment.

EXAM TIP – Appeal timelines

To Tribunal (TDSAT): 45 days. To High Court: 60 days (+60 condonable). Tribunal disposal target: 6 months.



12. Chapter XI – Offences (Sections 65–78)

This chapter sets out specific cyber-crimes and their punishments, distinguishing administrative non-compliance (civil penalties) from criminal offences (jail and/or fine).

Section 65 – Tampering with Computer Source Documents

Whoever knowingly or intentionally conceals, destroys or alters, or causes another to do so, any computer source code required to be kept/maintained by law, is punishable with imprisonment up to 3 years, or fine up to ₹2,00,000, or both.

Section 66 – Computer-Related Offences

If any person, dishonestly or fraudulently, does any act referred to in Section 43, he is punishable with imprisonment up to 3 years, or fine up to ₹5,00,000, or both.

Section 66A – [Struck Down / Omitted]

EXAM TIP – Section 66A

Section 66A (offensive messages) was struck down as unconstitutional in *Shreya Singhal v. Union of India (2015)* for violating Article 19(1)(a), and was formally omitted by the Jan Vishwas Act, 2023. It is no longer in operation.

Sections 66B–66E – Specific Cyber-Crimes

Sec	Offence	Punishment
66B	Dishonestly receiving stolen computer resource/communication device, knowing it to be stolen.	Up to 3 yrs jail, or fine up to ₹1 lakh, or both.
66C	Identity theft – fraudulent/dishonest use of another’s electronic signature, password or unique ID.	Up to 3 yrs jail and fine up to ₹1 lakh.
66D	Cheating by personation by means of any computer resource/communication device.	Up to 3 yrs jail and fine up to ₹1 lakh.
66E	Violation of privacy – capturing/publishing/transmitting the image of a private area without consent.	Up to 3 yrs jail, or fine up to ₹2 lakh, or both.



Section 66F – Cyber Terrorism

A person commits cyber terrorism if, with intent to threaten the unity, integrity, security or sovereignty of India or to strike terror, he denies authorised access, attempts unauthorised access, or introduces a contaminant – and thereby causes (or is likely to cause) death, injury, damage to property, disruption of essential supplies/services, or accesses restricted information likely to affect national security.

- Punishment: imprisonment which may extend to imprisonment for life.

EXAM TIP

Section 66F is the most serious offence in the Act – life imprisonment; cognizable and non-bailable.

Sections 67, 67A, 67B – Obscene & Explicit Content

Sec	Offence	First conviction	Subsequent
67	Publishing/transmitting obscene material in electronic form.	Up to 3 yrs + ₹5 lakh.	Up to 5 yrs + ₹10 lakh.
67A	Publishing/transmitting sexually explicit material.	Up to 5 yrs + ₹10 lakh.	Up to 7 yrs + ₹10 lakh.
67B	Child sexual abuse material (children in sexually explicit acts).	Up to 5 yrs + ₹10 lakh.	Up to 7 yrs + ₹10 lakh.

EXAM TIP

Sec 67 first conviction = 3 years; 67A and 67B first conviction = 5 years. Fines reach ₹10 lakh from the subsequent conviction (67) or even the first (67A/67B).

Section 67C – Preservation & Retention of Information by Intermediaries

Intermediaries must preserve and retain such information, for such duration and in such format, as the Central Government prescribes.



LAW UPDATED – Section 67C now a PENALTY

Old: imprisonment up to 3 years and fine. Current (w.e.f. 30-11-2023): **penalty up to ₹25,00,000**. Decriminalised by the Jan Vishwas Act, 2023.



Section 68 — Power of Controller to Give Directions

The Controller may direct a CA or its employee to take measures or cease activities to ensure compliance.

LAW UPDATED — Section 68(2)

Old: imprisonment up to 2 years or fine up to ₹1 lakh or both. Current (w.e.f. 30-11-2023): **penalty up to ₹25,00,000.**

Sections 69, 69A, 69B — Interception, Blocking & Monitoring

Section 69 — Interception, Monitoring or Decryption

The Central/State Government (or authorised officer) may direct interception, monitoring or decryption of information in any computer resource, where necessary in the interest of sovereignty/integrity, defence, security of the State, friendly relations, public order, or to prevent incitement to a cognizable offence. A subscriber/intermediary who fails to assist may face imprisonment up to 7 years and fine.

Section 69A — Blocking of Public Access

The Central Government may direct any agency/intermediary to block public access to information on the specified grounds. Non-compliance: imprisonment up to 7 years and fine. (Upheld as constitutional, with safeguards, in Shreya Singhal.)

Section 69B — Monitoring & Collecting Traffic Data for Cyber Security

The Central Government may authorise an agency to monitor and collect traffic data to enhance cyber security and prevent intrusion/contaminants.

LAW UPDATED — Section 69B(4)

An intermediary who fails to provide technical assistance is punishable with imprisonment up to 1 year **and/or fine up to ₹1 crore** (fine ceiling raised by the Jan Vishwas Act, 2023).

Section 70 — Protected System

The appropriate Government may, by notification, declare any computer resource which directly or indirectly affects the facility of Critical Information Infrastructure (CII) to be a “protected system”, and authorise persons to access it. Securing or attempting to secure



unauthorised access to a protected system is punishable with imprisonment up to 10 years and fine.

Section 70A — National Nodal Agency

The Central Government may designate an organisation as the national nodal agency for Critical Information Infrastructure Protection (in practice, NCIIPC).

Section 70B — Indian Computer Emergency Response Team (CERT-In)

The Central Government appoints CERT-In as the national nodal agency for cyber-security incident response. Its functions include collection/analysis/dissemination of cyber-incident information, forecasts and alerts, emergency response measures, coordination, and issuing guidelines/advisories.

LAW UPDATED — Section 70B(7)

Any service provider, intermediary, data centre, body corporate or person failing to provide information or comply with CERT-In directions is punishable with imprisonment up to 1 year **or fine up to ₹1 crore** or both. Fine raised from ₹1 lakh to ₹1 crore by the Jan Vishwas Act, 2023; imprisonment retained (NOT fully decriminalised).

Section 71 — Penalty for Misrepresentation

Whoever makes any misrepresentation to, or suppresses any material fact from, the Controller or the Certifying Authority for obtaining any licence or Electronic Signature Certificate is punishable with imprisonment up to 2 years, or fine up to ₹1 lakh, or both.

Section 72 — Breach of Confidentiality and Privacy

Where a person who, under the powers conferred by the Act, has secured access to any electronic record/information discloses it to another without the consent of the person concerned.

LAW UPDATED — Section 72

Old: imprisonment up to 2 years, or fine up to ₹1 lakh, or both. Current (w.e.f. 30-11-2023): **penalty up to ₹5,00,000.**

Section 72A — Disclosure of Information in Breach of Lawful Contract

Where any person (including an intermediary), while providing services under a lawful contract, has secured access to personal information and discloses it — without consent



or in breach of the contract — with intent to cause (or knowing it is likely to cause) wrongful loss or gain.

LAW UPDATED — Section 72A

Old: “Punishment ...” — imprisonment up to 3 years, or fine up to ₹5 lakh, or both. Current (w.e.f. 30-11-2023): heading changed to “Penalty”; offender **liable to penalty up to ₹25,00,000**.

Sections 73 & 74 — False / Fraudulent Certificates

- Section 73 — publishing an Electronic Signature Certificate false in certain particulars (e.g., knowing it was not issued by the listed CA, not accepted by the subscriber, or revoked/suspended), unless to verify a prior valid signature.
- Section 74 — creating, publishing or making available a certificate for any fraudulent or unlawful purpose.
- Punishment (both): imprisonment up to 2 years, or fine up to ₹1 lakh, or both.

VERIFIED

Sections 71, 73 and 74 were not amended by the Jan Vishwas Act, 2023 — imprisonment up to 2 years and/or fine up to ₹1 lakh continues.

Sections 75–78 — Reach, Confiscation, Compounding, Investigation

- Section 75 — the Act applies to offences/contraventions committed outside India by any person if the act involves a computer, computer system or network located in India.
- Section 76 — confiscation: any computer, system, media, etc., used in contravention is liable to confiscation (with a proviso protecting innocent persons).
- Section 77 — compensation, penalties or confiscation under the Act do not bar other punishment under any other law in force.
- Section 77A — compounding of offences: a court of competent jurisdiction may compound offences, except those punishable with life imprisonment or imprisonment exceeding 3 years, or those affecting the socio-economic condition of the country, or committed against a child below 18 or a woman.
- Section 77B — offences punishable with imprisonment of 3 years and above are cognizable; offences punishable with imprisonment of 3 years are bailable.



- Section 78 — notwithstanding the CrPC, a police officer not below the rank of Inspector shall investigate offences under the Act.

EXAM TIP — 77A & 77B

Compoundable: offences with imprisonment up to 3 years (subject to exceptions). Bailable: offences punishable with 3 years; Cognizable: 3 years and above. These three are frequently combined in MCQs.





13. Chapter XII – Intermediaries Not Liable in Certain Cases (Section 79)

Section 79 – Safe Harbour for Intermediaries

Section 79 gives intermediaries (ISPs, telecom/network providers, web-hosts, search engines, social media, online marketplaces, etc.) conditional immunity (“safe harbour”) from liability for third-party information, data or communication links made available or hosted by them.

Conditions to claim the exemption

- the intermediary’s function is limited to providing access to a communication system over which information is transmitted/stored/hosted; OR it does not initiate the transmission, select the receiver, or select/modify the information; and
- it observes due diligence and the Intermediary Guidelines while discharging its duties; and
- it does not conspire, abet, aid or induce the commission of the unlawful act.

When immunity is lost

- if the intermediary conspires/abets/aids/induces the unlawful act; or
- on receiving “actual knowledge”, or on being notified by the appropriate Government/agency, that the resource is being used to commit an unlawful act, it fails to expeditiously remove/disable access to that material without vitiating the evidence.

EXAM TIP – Shreya Singhal reading-down

In *Shreya Singhal v. Union of India (2015)*, the Supreme Court read down Section 79(3)(b): “actual knowledge” means a court order or a Government/agency notification — an intermediary need not act on private complaints alone. Section 79 is a defence/exemption provision; it is the bedrock of intermediary liability and is heavily examined.



14. Chapter XIIA — Examiner of Electronic Evidence (Section 79A)

Section 79A — Central Government to Notify Examiner of Electronic Evidence

Inserted in 2008. The Central Government may, by notification, specify any Department/body/agency as the Examiner of Electronic Evidence, to provide expert opinion on electronic-form evidence before any court or authority. “Electronic form evidence” means any information of probative value stored or transmitted in electronic form (including computer evidence, digital audio/video, cell phones, digital fax machines).





15. Chapter XIII – Miscellaneous (Sections 80–90)

Section 80 – Power of Police to Enter, Search, etc.

Notwithstanding the CrPC, any police officer not below the rank of Inspector (or any officer of the Central/State Government authorised by the Central Government) may enter any public place, search and arrest without warrant any person found there who is reasonably suspected of having committed, committing, or being about to commit an offence under the Act. (“Public place” includes public conveyances, hotels, shops or other places intended for use by, or accessible to, the public.)

Section 81 – Act to Have Overriding Effect

The provisions of the Act have effect notwithstanding anything inconsistent in any other law in force. A proviso clarifies that nothing in the Act restricts any person’s rights under the Copyright Act, 1957 or the Patents Act, 1970.

Section 81A – Application to Electronic Cheque & Truncated Cheque

The provisions of the Act apply (with necessary modifications by Central Government notification) to electronic cheques and truncated cheques under the Negotiable Instruments Act, 1881.

Section 82 – Controller and Officers to be Public Servants

The Controller, Deputy Controllers and Assistant Controllers are deemed public servants within the meaning of the penal law.

Section 83 – Power to Give Directions

The Central Government may give directions to any State Government on matters specified, for carrying the Act into execution.

Section 84 – Protection of Action Taken in Good Faith

No suit, prosecution or other legal proceeding lies against the Central/State Government, the Controller or any person acting on their behalf for anything done in good faith under the Act.



Section 84A — Modes or Methods for Encryption

Inserted in 2008. The Central Government may, for secure use of the electronic medium and to promote e-governance and e-commerce, prescribe the modes or methods of encryption.

Section 84B — Punishment for Abetment of Offences

Whoever abets any offence is punished with the punishment provided for that offence (where the act abetted is committed in consequence of the abetment and no express provision is made for the abetment).

Section 84C — Punishment for Attempt to Commit Offences

Whoever attempts to commit an offence, or causes such an offence to be committed, and in the attempt does any act towards its commission, is punishable with imprisonment up to one-half of the longest term provided for that offence, or with the fine provided for it, or both.

■ EXAM TIP — 84B vs 84C

Abetment (84B) = same punishment as the offence. Attempt (84C) = up to one-half of the longest term for the offence. Don't mix these two.

Section 85 — Offences by Companies

Where an offence under the Act is committed by a company, every person who, at the time of the offence, was in charge of and responsible to the company for the conduct of its business, as well as the company, is deemed guilty — unless he proves the offence was committed without his knowledge or that he exercised all due diligence to prevent it. Where the offence is proved to be attributable to the consent/connivance/neglect of a director, manager, secretary or other officer, that officer is also liable. ("Company" includes a firm or association of individuals; "director" includes a partner.)

Sections 86–90 — Rule-Making & Residual Powers

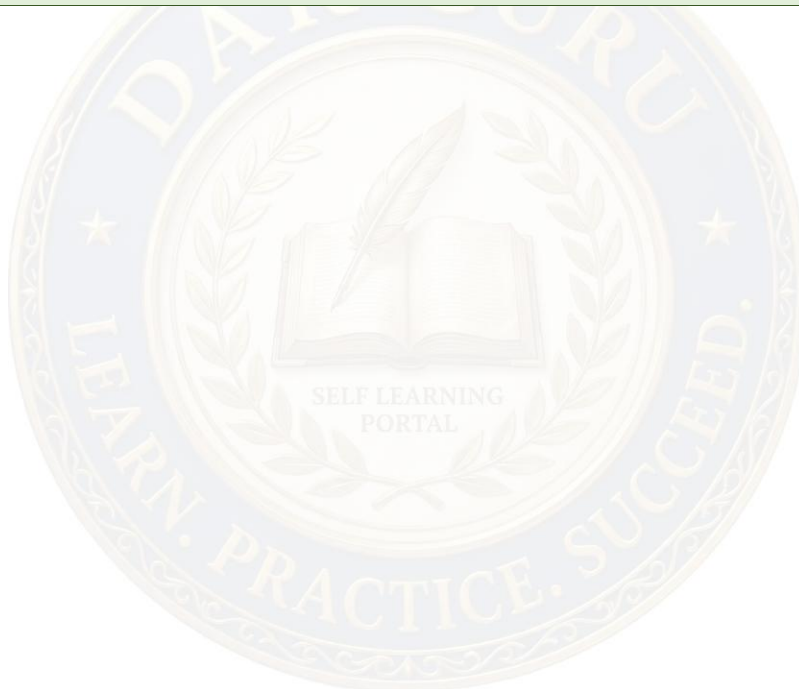
- Section 86 — removal of difficulties: the Central Government may, within 2 years of commencement, make orders to remove difficulties (laid before Parliament).
- Section 87 — power of the Central Government to make rules (for electronic signatures, CERT-In, interception/blocking/monitoring procedures, etc.); rules to be laid before Parliament.



- Section 88 — constitution of the Cyber Regulations Advisory Committee to advise the Central Government and the Controller.
- Section 89 — power of the Controller to make regulations (with previous Central Government approval).
- Section 90 — power of the State Government to make rules on matters within its domain.

☒ **VERIFIED — Sections 91–94 omitted**

Sections 91–94 (and the Third & Fourth Schedules), which originally amended the IPC, the Indian Evidence Act, the Bankers' Books Evidence Act and the RBI Act, now stand omitted; the consequential changes were absorbed into those parent statutes.





16. Schedules

The First Schedule — Documents/Transactions to which the Act does NOT apply

Under Section 1(4), the Act (and electronic signatures) do not apply to:

Excluded document / transaction	Governing law
Negotiable instruments (other than a cheque)	Negotiable Instruments Act, 1881
Power-of-attorney	Powers-of-Attorney Act, 1882
Trust	Indian Trusts Act, 1882
Will / any testamentary disposition	Indian Succession Act, 1925
Contract for sale/conveyance of immovable property	— (any such contract / interest)

■ EXAM TIP — The cheque trap

Negotiable instruments are excluded — BUT a cheque is an exception within the exception, so the Act DOES apply to cheques (see also Section 81A). Among the most frequently asked points.

The Second Schedule — Approved Electronic Signature Techniques

Lists the techniques recognised for affixing an electronic signature, including e-authentication using Aadhaar e-KYC services (Aadhaar e-Sign) and procedures by trusted third parties through Digital Signature Certificates.

Third & Fourth Schedules — [Omitted]

Both are now omitted from the Act.



17. Summary & Quick Reference

Consolidated positions of the IT Act, 2000 as in force (verified as on June 2026). The Jan Vishwas (Amendment of Provisions) Act, 2023 (effective 30 November 2023) decriminalised several procedural offences, replacing imprisonment with monetary penalties.

☒ VERIFIED — Figures cross-checked against the bare Act

All figures below are the current, in-force amounts. Where a figure was changed by the Jan Vishwas Act, 2023, the current amount is shown.

A. Administrative / Civil Penalties (adjudicated by officers)

Sec	Non-compliance	Current penalty
33	CA failing to surrender suspended/revoked licence.	Up to ₹5,00,000.
43	Damage to a computer system (civil).	Compensation (no ceiling under Sec 43).
43A	Body corporate negligent in protecting sensitive personal data.	Compensation (no ceiling).
44(a)	Failure to furnish document/return/report.	Up to ₹1,50,000 per failure.
44(b)	Failure to file return within time.	Up to ₹5,000 per day.
44(c)	Failure to maintain books/records.	Up to ₹10,000 per day.
45	Residuary penalty (no separate penalty provided).	Penalty up to ₹1 lakh + compensation up to ₹10 lakh (intermediary/company) or ₹1 lakh (other).
67C	Intermediary failing to preserve/retain information.	Penalty up to ₹25,00,000.
68(2)	Failure to comply with Controller's directions.	Penalty up to ₹25,00,000.
72	Breach of confidentiality/privacy.	Penalty up to ₹5,00,000.
72A	Disclosure in breach of lawful contract.	Penalty up to ₹25,00,000.

**B. Criminal Offences (tried by courts)**

Sec	Offence	Maximum punishment
65	Tampering with computer source documents.	3 yrs and/or ₹2 lakh.
66	Computer-related offences (dishonest/fraudulent).	3 yrs and/or ₹5 lakh.
66B	Receiving stolen computer resource.	3 yrs and/or ₹1 lakh.
66C	Identity theft.	3 yrs and ₹1 lakh.
66D	Cheating by personation.	3 yrs and ₹1 lakh.
66E	Violation of privacy.	3 yrs and/or ₹2 lakh.
66F	Cyber terrorism.	Imprisonment for life.
67	Obscene material.	3 yrs (5 on repeat) + ₹5–10 lakh.
67A	Sexually explicit material.	5 yrs (7 on repeat) + up to ₹10 lakh.
67B	Child sexual abuse material.	5 yrs (7 on repeat) + up to ₹10 lakh.
69/69A	Failure to assist interception / comply with blocking.	7 yrs and fine.
69B(4)	Failing to assist cyber-security monitoring.	1 yr and/or ₹1 crore.
70	Unauthorised access to a protected system.	10 yrs and fine.
70B(7)	Non-compliance with CERT-In.	1 yr and/or ₹1 crore.
71	Misrepresentation to Controller/CA.	2 yrs and/or ₹1 lakh.
73/74	False / fraudulent certificate.	2 yrs and/or ₹1 lakh.



C. Critical Timelines & Monetary Limits

Context	Limit
Licence renewal (CA)	Apply at least 45 days before expiry.
Suspension of CA licence (no hearing)	Max 10 days.
Suspension of certificate (no hearing)	Max 15 days.
Appeal to Appellate Tribunal (TDSAT)	Within 45 days.
Tribunal disposal target	Endeavour within 6 months.
Appeal to High Court	Within 60 days (+60 condonable).
Adjudicating Officer jurisdiction	Claims up to ₹5 crore.
Removal of difficulties (Sec 86)	Within 2 years of commencement.

D. Cognizable / Bailable / Compoundable (Sec 77A & 77B)

- Cognizable: offences punishable with imprisonment of 3 years and above.
- Bailable: offences punishable with imprisonment of 3 years.
- Compoundable: offences with imprisonment up to 3 years, except those affecting socio-economic conditions or committed against a child below 18 or a woman.

E. Official Hierarchy at a Glance

- Apex authority: Central Government.
- Regulator: Controller of Certifying Authorities (CCA).
- Field issuer: Certifying Authority (CA).
- Appellate body: Telecom Disputes Settlement and Appellate Tribunal (TDSAT).
- CII protection: National nodal agency (NCIIPC, Sec 70A).
- Incident response: Indian Computer Emergency Response Team (CERT-In, Sec 70B).

F. Corrections Carried Forward in This Edition

For transparency, the following figures were corrected against primary sources (errors present in earlier drafts):

- Section 44(a): ₹1,50,000 (earlier wrongly ₹15,00,000).
- Section 44(b): ₹5,000 per day (earlier wrongly ₹50,000).



- Section 44(c): ₹10,000 per day (earlier wrongly ₹1,00,000).
- Section 67C: penalty up to ₹25 lakh (earlier wrongly shown as imprisonment retained).
- Section 45: penalty ₹1 lakh + compensation ₹10 lakh / ₹1 lakh.
- Section 72A: heading changed to “Penalty”, figure ₹25 lakh (decriminalised).

✓ VERIFIED – Sources & verification scope

Every section (1–90) was reconciled against the consolidated bare text of the IT Act, 2000 on India Code (indiacode.nic.in), supported by the gazette substitution language of the Jan Vishwas (Amendment of Provisions) Act, 2023 (Act 18 of 2023; IT-Act provisions effective 30 November 2023). Specific quanta independently confirmed include Section 43 (cap removed by the 2008 Amendment), Section 70 (10 years), Section 78 (Inspector rank), Section 84C (one-half of the longest term), and Sections 76–77A. Section 79 reflects the reading-down in *Shreya Singhal v. Union of India* (2015). The Jan Vishwas Act, 2026 (Act 8 of 2026) does not amend the IT Act; Section 43A is slated for repeal on DPDP Act Phase 3 commencement (notified 13 May 2027). Always confirm against the official Gazette before quoting in any formal context.

— End of Booklet —

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